Montgomery County District Court

Cause No. 2025-CV-0032

Susan Garza, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 30, 2025
Plaintiff's counsel:	Kristin Romero, Santiago & Romero Law Group

PARTIES

Plaintiff Susan Garza is an individual residing in Texas who brings this action for injuries sustained in a motor vehicle collision. Defendant is an automobile insurance carrier authorized to transact insurance business in the State of Texas and may be served through its registered agent for service of process.

FACTS

On December 18, 2024, Plaintiff was lawfully parked in a marked space in a retail parking lot in Pasadena, Texas. While Plaintiff was stationary, a vehicle operated by an insured of Defendant backed out of an adjacent space without yielding and struck the driver's side of Plaintiff's vehicle. The impact was forceful enough to jolt Plaintiff's body violently forward and back. Plaintiff reported the collision to Defendant, which assigned a claim number and acknowledged coverage for the at-fault insured's liability. Defendant has not made a fair settlement offer that compensates Plaintiff for the losses described below.

NEGLIGENCE

The insured driver owed a duty to exercise ordinary care when operating a motor vehicle in a parking facility, including keeping a proper lookout, yielding to vehicles and pedestrians, and maintaining control of the vehicle. The insured breached that duty by reversing without confirming the way was clear. This breach was the direct and proximate cause of the collision and Plaintiff's injuries. Defendant is liable under the liability coverage it issued to its insured and under the Texas Insurance Code and Unfair Claim Settlement Practices provisions for failing to promptly and fairly settle a claim where liability has become reasonably clear.

DAMAGES

As a result of the collision, Plaintiff suffered a cervical neck strain, with pain, stiffness, reduced range of motion, and headaches. Plaintiff sought medical evaluation and treatment, incurred medical expenses, lost time from work, and continues to experience pain and limitation in daily activities. Plaintiff seeks actual damages for past and future medical expenses, lost earnings, physical pain, mental anguish, and physical impairment, together with pre-judgment and post-judgment interest and court costs. Plaintiff demands judgment in the amount of $202,000.00.